

		An employer shall not be liable for punitive damages “based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).) Plaintiff concedes Plaintiff did not allege sufficient facts to support a claim for punitive damages against a corporate defendant. Plaintiff did not allege sufficient facts to show malice, oppression, or fraud. (<i>See, Nickerson v. Stonebridge Life Ins. Co.</i> (2016) 5 Cal.App.5th 1, 21-22.) Accordingly, the motion to strike the punitive damages allegations and prayer for punitive damages is granted with 15 days leave to amend. Defendant shall give notice. 2. Case Management Conference Continued to 12-82025 at 9:00 a.m.
4	C. vs. DOE 1 2022-01274942	Motion for Summary Judgment and/or Adjudication Continued to 11/24/2025 per stipulation
5	Capuleno vs. El Pollo Loco, Inc. 2023-01324749	Motion for Summary Judgment and/or Adjudication Cross-Defendant Adriano Design’s (“Adriano Design”) motion for summary judgment or, alternatively, summary adjudication, against Cross-Complainants, El Pollo Loco, Inc. and El Pollo Loco Holdings, Inc. (collectively, “El Pollo Loco”), is denied. <u>Procedural Issues</u> Adriano Design’s request for judicial notice of the complaint is granted. El Pollo Loco’s objections, nos. 1 and 2, to Adriano Design’s evidence, are overruled. Adriano Design’s request for the court to refuse to consider the opposition is declined, as is El Pollo Loco’s request for the court to treat the motion as one solely for summary judgment.

Merits

Adriano Design moves for summary judgment or, alternatively, for summary adjudication on El Pollo Loco's cross-claims for: (1) comparative indemnity and apportionment of fault, (2) total equitable indemnity, (3) contribution, (4) breach of implied warranty, and (5) declaratory relief.

Legal Standard

"[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) A "party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . ." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) "A prima facie showing is one that is sufficient to support the position of the party in question." (*Id.* at p. 851.) A defendant meets his or her burden in a summary adjudication motion "by negating an essential element of the plaintiff's case, or by establishing a complete defense, or by demonstrating the absence of evidence to support the plaintiff's case." (*Angelica Textile Services, Inc. v. Park* (2013) 220 Cal.App.4th 495, 504 [citations omitted].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co., supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The court "may not weigh the plaintiff's evidence or inference against the defendants' as though it were sitting as the trier of fact," but "it must nevertheless determine what any evidence or inference could show or imply to a reasonable trier of fact." (*Id.* at 856.)

Application

Adriano Design seeks summary judgment, or adjudication, based on the following "fact"—that the "spoliation" of the subject chair means El Pollo Loco cannot prove any of their cross-claims. Specifically, Adriano Design argues the claims "must be dismissed because the facts demonstrate that Cross-Complainants disposed of the Chair involved in the Subject Accident and thereby cannot establish the

		Subject Chair was in fact sold by Adriano Design.” (ROA 66—Mot. at p. 9.) The court finds Adriano Design has not met its initial burden of showing there is no triable issue of material fact and that it is entitled to judgment as a matter of law. The issue of whether Adriano Design is entitled to a sanction for the purported spoliation of the chair is not before the court. The only question to be determined is whether Adriano Design has met its initial burden of establishing that El Pollo Loco does not possess, and cannot reasonably obtain, needed evidence to show that the subject chair came from Adriano Design. In support of this “fact,” Adriano Design proffered evidence that: [1] an attorney for El Pollo Loco told Adriano Design’s attorney that “his client has been unable to locate the subject chair and has, in fact, disposed of it” (Akhavan Decl. at ¶ 5); and [2] the owner of Adriano Design “upon careful examination of the photographs of the subject chair” was “unable to identify the chair as being sold by Adriano Design” and “there are in fact other suppliers offering the identical chairs” (Michaels Decl. at ¶ 2). This evidence does not show El Pollo Loco has no evidence from which a factfinder could determine that the subject chair was obtained from Adriano Design. As Michaels points out in his declaration, there are “identical chairs” offered by other suppliers, so, even assuming the chair was in El Pollo Loco’s possession, presumably, additional evidence (e.g., an invoice) would be required to show that the chair was sold by Adriano Design. The court need not resolve the question of whether El Pollo Loco will ultimately present evidence that the subject chair was purchased from Adriano Design. Because Adriano Design did not meet its initial burden, the motion is denied. El Pollo Loco is ordered to give notice of the ruling.
6	Higby vs. Seabreeze Management Company, Inc. 2023-01328795	Motion for Leave to File Cross Complaint Defendant Great Scott Tree Service, Inc. seeks an order permitting Great Scott leave to file a cross-complaint to assert causes of action against Brios Owners’ Association. (Code Civ. Proc., §§ 426.50, 428.10, subd. (b), and 428.50; <i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-99.) As an initial matter, the Court notes Great Scott’s proof of service states the server “caused the above-listed document(s) by hand to the office of the person(s) listed below.” (Declaration of Proof of Service, ROA No. 57 and 66.) However, Great Scott did not file any proof of service showing the papers were actually personally delivered on the